

		8. Paragraph XV.B.iii of the proposed order should be removed. 9. On page 8 of the proposed order, the phrase "and deadline for a Notice of Intent to Appear" should be deleted. 10. Each exhibit to the proposed order should have an exhibit number, which should consecutive numbers (not a combination of letters and numbers, and not non-consecutive letters or numbers). The hearing on plaintiff's motion for preliminary approval of a class action settlement is continued to <u>January 28, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice and to file a proof of service. No earlier hearing date is available for this motion.
2	Bitonti v. Teen Road to Safety Inc. 2023-01333703	<u>Plaintiffs' Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs' motion for final approval of an \$220,000 class action and PAGA settlement. The court grants the motion as follows: \$5,000.00 for enhancement awards to plaintiffs (\$10,000 total); \$73,326.00 for attorneys' fees; \$13,183.95 for litigation costs; \$4,000.00 for settlement administration costs; and \$10,000.00 total PAGA penalties (\$7,500.00 to the LWDA). The final accounting hearing is scheduled for <u>April 1, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
3	Borrego Water District v. All Persons 37-2020-00005776	<u>Borrego Springs Watermaster's Motion to Amend Judgment</u>

		The Borrego Springs Watermaster moves to amend the judgment entered April 8, 2021 (ROA 338). No oppositions have been filed. For the following reasons, the Watermaster’s motion is granted. The Watermaster moves to amend the Groundwater Management Plan (GMP) attached as Exhibit 1 to the judgment to address seven “recommended correction actions” (RCAs) from the California Department of Water Resources (DWR) and to incorporate new data and information that has become available since the initial GMP. In June 2026, the Watermaster Board of Directors unanimously approved the Five Year Assessment and the 2026 GMP Update, which were submitted to DWR pursuant to Water Code section 10733.6(c) and DWR’s February 25, 2025 approval. Adams Decl. (ROA 687) ¶ 13. Pursuant to Code of Civil Procedure section 852, the court has continuing jurisdiction to modify or amend a final judgment “in response to new information, changed circumstances, [or] the interests of justice.” Section VII.A of the judgment states the court has “full jurisdiction, power and authority . . . to make such further or supplemental orders or directions as may be necessary or appropriate for . . . the modification, amendment or amplification [of] any of the provisions of this Judgment, or to add to the provisions hereof, consistent with the rights herein decreed.” Judgment (ROA 338) (Part 1, at 46). The Watermaster has demonstrated that the GMP attached as Exhibit 1 to the judgment should be amended as set forth in the 2026 GMP Update (ROA 686 (Ex. 1)). Adams Decl. (ROA 687) ¶¶ 4-13. The GMP attached as Exhibit 1 to the judgment (ROA 338) is amended as set forth in the 2026 GMP Update attached as Exhibit 1 to ROA 686. The Watermaster is ordered to give notice. <u>Status Conference</u> The court has reviewed the parties’ joint status conference statement filed September 2, 2026 (ROA 696), and based thereon continues the September 10, 2026 status conference to <u>January 21, 2027 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
4	Carter v. Quantum Fuel Systems LLC 2023-01334066	Off calendar.
5	Carter v. Quantum Fuel Systems LLC 2024-01378128	Off calendar.